25 1/2

Executive Order

ARAPAHO NATIONAL FOREST

COLORADO.

Under authority of the act of Congress approved June 4, 1897 (30 Stat., 11, 34-36), and on the recommendation of the Secretary of Agriculture, it is hereby ordered that the boundaries of the Arapaho National Forest, as modified by proclamation of November 19, 1912, be further modified by excluding therefrom the following described lands in the State of Colorado:

In T. 5 N., R. 78 W., Sec. 11;
In T. 5 N., R. 79 W., Sec. 1, E½ Sec. 2;
In T. 1 S., R. 78 W., W½ Sec. 32;
In T. 2 S., R. 78 W., W½ Sec. 5, all Sec. 6;
In T. 1 S., R. 79 W., Sec. 27, N½ NE¼, Sec. 35, NW¼ Sec. 36;
In T. 2 S., R. 79 W., E½ Sec. 1;
Sixth Principal Meridian.

It is hereby ordered pursuant to the authority reposed in me by the act of Congress approved September 30, 1913 (30 Stat., 113), that such lands, subject to valid rights, existing withdrawals and the provisions hereof, shall be open to settlement and disposition under any public land laws applicable thereto, at and after, but not before nine o'clock a. m., standard time, on the sixty-third day after the date hereof: Provided, that during a period of twenty days preceding the date on which such lands shall become subject to appropriation generally, and at nine o'clock a. m., standard time, on said day, applications under the general provisions of the homestead laws to enter any of such lands subject thereto may be presented to the United States land office at Denver, Colorado, and all such applications lawfully executed and accompanied by the required payments, shall be considered as filed simultaneously and shall have priority over rights asserted through settlement, or applications, filings or selections under other laws, offered at said hour. Conflicts of equal rights shall be determined by drawing in the manner prescribed by existing regulations.

Persons who go upon any of the lands to be restored as herein provided and perform any act of settlement thereon from and including the date of this order until nine o'clock a. m., standard time, on the sixty-third day from and after the date hereof, or who are on or are occupying any part of such lands at said hour, except those having valid subsisting settlement rights initiated prior to reservation and since maintained, and those having preferences to make entry under the provisions of the act of Congress approved June 11, 1906 (34 Stat., 233), and Acts amendatory, will be considered and dealt with as trespassers and preference will be given the prior legal applicant, notwithstanding such unlawful settlement or occupancy: Provided, however, that nothing herein shall prevent persons from going upon and over the lands to examine them with a view to making entry thereof or settlement thereon when the lands shall become subject thereto in accordance with this order. Persons having prior settlement rights or preferences, as above defined, will be allowed to make entry in conformity with existing law and regulations.

WOODROW WILSON

THE WHITE HOUSE,
28 February, 1917.

[No. 2542.]